

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

3. HOLLY CHARLES V. JOSEPH CHARLES

23FL0516

On May 4, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders and orders to vacate, set aside, and stay enforcement of the court's prior support order and sanctions. He filed another RFO on June 16th again seeking to stay the court's support orders. In response to the ex parte request, Petitioner filed her Responsive Declaration to Request for Order on June 10th. The ex parte was denied and the matter was set to be heard on the regular law and motion calendar on the present date.

The parties attended Child Custody Recommending Counseling (CCRC) on June 25, 2026. They reached some agreements but could not agree on all issues. A report with the agreements and recommendations was prepared on June 26, 2026. It was mailed to the parties on June 29th.

There is no Proof of Service for the May 4th RFO, however, Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on July 20th and July 21st respectively.

Petitioner objects to the May 4th RFO on procedural grounds including the service of an unendorsed copy of the RFO, failure to file an Income and Expense Declaration, and failure to set forth facts sufficient to notify the other party of the moving party's contentions. Petitioner's objections are sustained. The May 4th RFO is dropped from calendar due to lack of proper service, and failure to file an Income and Expense Declaration.

Respondent's June 16th RFO is also dropped due to his failure to file an Income and Expense Declaration.

Petitioner is requesting sanctions in the amount of \$5,000 pursuant to Family Code § 271. An award for attorney's fees and sanctions may be made pursuant to Family Code section 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a). While the purpose of Section 271 is to impose a punitive sanction, the court is not to impose a sanction that would create an "unreasonable financial burden on the party against whom the sanction is imposed." *Id.*

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Here, the court is inclined to award sanctions given Respondent's repeated filings on the same issues. That said, as indicated above, the court does not have a current Income and Expense Declaration from Respondent and the court is concerned that a sanction in the amount of \$5,000 would likely pose an unreasonable financial burden. Accordingly, Respondent is sanctioned \$1,000 as and for sanctions pursuant to Family Code § 271. This amount is to be paid directly to Petitioner's attorney. Sanctions may be paid in one lump sum or in monthly increments of \$100 commencing on September 1, 2026 and continuing on the 1st of each month until paid in full (approximately 10 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE MAY 4TH RFO IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE, AND FAILURE TO FILE AND INCOME AND EXPENSE DECLARATION. RESPONDENT'S JUNE 16TH RFO IS ALSO DROPPED DUE TO HIS FAILURE TO FILE AN INCOME AND EXPENSE DECLARATION.

RESPONDENT IS SANCTIONED \$1,000 AS AND FOR SANCTIONS PURSUANT TO FAMILY CODE § 271. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER'S ATTORNEY. SANCTIONS MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$100 COMMENCING ON SEPTEMBER 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF

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A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.